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28 August 2026

The Editors

Journal of Empirical Legal Studies

Dear Editors,

I am pleased to submit the enclosed manuscript, “99 Per Cent of the Procedure, 27 Per Cent of the Code: The Enacted Law and the Applied Law in 50,666 Judgments,” for consideration in the *Journal of Empirical Legal Studies*. As the journal reviews double anonymously, I enclose an anonymised manuscript alongside the identified one; the anonymised copy withholds the repository URL, which would otherwise name me in a footnote about data.

Empirical work on legislation measures what states enact, and empirical work on courts measures what judges decide. Joining the two requires both corpora for one jurisdiction at article level, which is why it is rarely done. Saudi Arabia now permits it: the state has codified much of its private and commercial law within a decade, and its Ministry of Justice publishes commercial judgments in full text. The article links 121,207 statutory citations in 50,666 published judgments to 15,855 articles across 291 instruments, and reports what the link shows.

The central result compares two instruments to themselves, so it depends on no choice of denominator. The Commercial Courts Law, which tells the court how to proceed, has 99.0 per cent of its articles cited in the corpus. The Civil Transactions Law — the codification of Saudi private law, and the instrument the commercial court’s own jurisdiction clause names — has 27.5 per cent of its 721. Across the statute book 11.7 per cent of articles are ever cited; within the jurisdiction the statute draws for itself, 30.5 per cent. The obvious objection to the wider figures, that the published record is commercial while the denominator is not, is answered by rebuilding the denominator from the jurisdiction clause under two readings and by a fourth denominator that concedes the objection outright.

Two further results may interest referees. Segmenting each judgment at its own headings shows the narrowing to happen at the bench rather than the bar: the court’s reasons are more procedural than the statement of the case, not less, and 24 instruments appear in the statement of the case and never once in a court’s reasoning. And amendment activity predicts neither citation nor its absence: the pooled ratio suggesting otherwise is a composition effect that disappears under a within-instrument control.

The method section reports four defects that produced confident wrong answers before they were found — a citation pattern that missed the prefixes Arabic attaches to the word for ‘article’, the direction of containment when matching a citation to an instrument, anaphora resolved by recency rather than by kind, and the segment before the reasons being the court’s writing rather than the parties’ — because each would change a reported result and none is visible in a match rate. The first is the one I would draw a referee’s attention to: it cost 15.7 per cent of all citations, no check against the corpus could see it, and it surfaced only when the extractor was pointed at a document written by a practising lawyer rather than by the publisher. Three claims an earlier draft made were withdrawn during checking.

Data and code. The article is written to the data and code availability policy of the American Economic Association. Both corpora, the extraction and matching code, and the scripts that generate every number in the manuscript are public at <https://github.com/Abdullah-m7/saudi-legal-corpus-ai>, with a replication guide that reproduces each reported figure from the deposited data. No number in the manuscript is typed by hand: all are generated into a file of macros and typeset from it, and a check refuses to build a manuscript that types one anyway.

Use of AI tools. As the journal requires, I disclose that the analysis code and drafts of the manuscript were produced with the assistance of a large language model (Anthropic’s Claude), working under my direction. I designed the study, framed the questions, verified each result against the corpus, and take responsibility for the content. The manuscript carries the same disclosure. No measurement in the article is produced by a language model; every figure is computed by the deposited code from the deposited data.

The manuscript is not under consideration elsewhere and has not been published. I have no competing interests and received no funding for this work. I am an independent researcher without institutional support, and I am submitting

to the subscription track rather than the open access one.

Yours sincerely,

Abdullah Almohammed